

Memorandum of Understanding, Release, and Waiver

This Memorandum of Understanding, Release and Waiver (“Agreement”) is between the Brecksville-Broadview Heights City School District Board of Education (“Board” or “District”), the Brecksville-Broadview Heights Organization of Support Staff (“Association”), and Mr. Ronald Robinson (“Employee” or “Mr. Robinson”) (collectively, the “Parties”).

WHEREAS, on or about September 2, 2022, Mr. Robinson was employed by the Board as a bus driver, at Step 1 of the applicable salary schedule included in the negotiated agreement (“Contract”) between the Board and the Brecksville-Broadview Heights Organization of Support Staff (“Association”);

WHEREAS, the Contract includes language in Section 13.B.3 that states “[a] newly-hired regular employee may be allowed credit for job-related experience up to and including the third step. Evaluation and approval of this credit shall be made by the Superintendent/Designee.”; and

WHEREAS, Mr. Robinson has three (3) years of job-related experience as a bus driver in other public school district(s) prior to be hired by the Board in September 2022; and

WHEREAS, the District would like to exercise its discretionary authority on a forward-looking basis to acknowledge Mr. Robinson’s prior years of experience as a bus driver, and Mr. Robinson is in support of the District’s determination to exercise such authority; and

NOW THEREFORE, in consideration of the mutual promises, covenants, and undertakings set forth below, and other good and valuable consideration, the receipt and sufficiency of which each of the parties hereby acknowledge, the parties agree as follows:

- A. The Board of Education shall place Mr. Robinson on Step 5 of the bus driver salary schedule, effective August 15, 2024. Any retroactive pay from August 15, 2024 through the executive of this Agreement shall be made no later than November 8, 2024 pay date. The Parties acknowledge and agree that Mr. Robinson’s step placement shall remain unchanged for all dates prior to August 15, 2024.
- B. Mr. Robinson and the Association waive their right to bring any claim, demand, action, grievance, suit, administrative or other proceeding against the District, Board, its administrators, agents, employees, heirs and assigns (“Released Parties”) arising out of his employment in relation to his placement on any and all salary schedule(s) and/or the terms of this Agreement.
- C. Mr. Robinson and the Association further agrees not to initiate or participate in any legal action or arbitration, to the extent consistent with applicable law, against Released Parties in connection with any claims arising out of the same transaction or occurrence as the claims waived or released by his in this Agreement. Employee hereby acknowledges and agrees that he relinquishes his right to damages or recovery in connection with any case, grievance, arbitration, administrative or court proceeding arising out of or relating to the

same transaction or occurrence as any claim that is waived or released under this Agreement.

- D. This Agreement, the offer of this Agreement, and compliance with this Agreement shall not constitute or be construed as an admission by the Released Parties, or any of them individually, of any wrongdoing, liability, fault, or truth of the allegations made in any charge, demand, action, lawsuit, grievance, arbitration, or dispute of any nature. This Agreement shall not be admissible in any judicial, administrative or other arbitration, proceeding or cause of action to demonstrate Released Parties' liability or as an admission of Released Parties' liability.
- E. The Parties acknowledge that this Agreement has been voluntarily entered into of their voluntary free will, and not under any duress. The Parties declare that the terms of this Agreement have been completely read, are fully understood, and are voluntarily accepted.
- F. This Agreement sets forth the entire agreement among the Parties and supersedes any prior discussions, negotiations, or representations among them regarding its subject matter. No additions or other changes to this Agreement will be made or be binding on any Party unless made in writing and signed by each Party to this Agreement. The Parties have not been influenced to sign this Agreement by any statement or representation not contained in this Agreement.
- G. By signing this Agreement, the Board and Association agree that this Agreement is not precedent setting and shall not result in a past practice.
- H. By signing below, the parties acknowledge and agree to the above terms conditions and agree to be legally bound by said terms.

IN WITNESS WHEREOF, the parties have duly executed this Agreement on the date set forth below with their respective signatures.

**Brecksville-Broadview Heights City School
District Board of Education**

**Brecksville Broadview Heights Organization
of Support Staff**

Superintendent (date)

NAME (date)

Treasurer (date)

Board President (date)

Employee

NAME

(date)